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Case Number: 24PSCV03015 Hearing Date: July 15, 2026 Dept: 6

CASE NAME: Carolina Ibarra, et al. v. City of Baldwin Park, et al.

1. Claimant Victor Rodriguez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability; and

2. Claimant Isaac Rodriguez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

The Court GRANTS Claimant Victor Rodriguez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability. The Court will sign the proposed order.

The Court GRANTS Claimant Isaac Rodriguez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability. The Court will sign the proposed order.

Petitioner is ordered to provide notice of the Court's ruling and file proof of service of same within five days of the Court's order.

BACKGROUND

This is an auto accident case. On September 11, 2024, plaintiffs Carolina Ibarra (Petitioner), Isaac Rodriguez (Isaac) by and through his Guardian Ad Litem Carolina Ibarra, and Victor (Victor) Rodriguez[1] by and through his Guardian Ad Litem Carolina Ibarra (collectively, Plaintiffs) filed this action against defendants City of Baldwin Park (City), Mikael Rodriguez (Rodriguez) (collectively, Defendants), and Does 1 to 10, alleging causes of action for negligence and violation of Vehicle Code §17001.

On June 23, 2026, Petitioner filed petitions for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with disability on behalf of Claimants. No opposition was filed.

LEGAL STANDARD

Court approval is required for all settlements of a minor's claim or that of a person lacking the capacity to make decisions. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337.) "[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Superior Court* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court Rules 7.950, 7.951, and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) An order for deposit of funds of a minor or person lacking decision-making capacity and a petition for the withdrawal of such funds must comply with California Rules of Court Rules 7.953 and 7.954. (Cal. Rules of Court, rule 3.1384; see also Super. Ct. L.A. County, Local Rules, rules 4.115-4.118.)

DISCUSSION – Victor

Form MC-350 (Rev. January 1, 2021)

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Victor has agreed to settle this action against Defendants in exchange for \$300,000.00, \$159,000.00 of which will go to Victor. If approved, \$90,000.00 will be paid in attorney fees, \$0.00 will be paid for reimbursement of litigation costs advanced by Victor's attorneys, and \$51,000.00 will be paid for medical expenses, leaving a balance of \$159,000.00 for Victor, to be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

The Court has reviewed the proposed settlement and finds the petition contains a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Victor.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Petition, Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$90,000.00 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

- (1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.
 - (2) The amount of the fee in proportion to the value of the services performed.
 - (3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.
 - (4) The amount involved and the results obtained.
 - (5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.
 - (6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.
 - (7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.
 - (8) The time and labor required.
 - (9) The informed consent of the representative of the minor or person with a disability to the fee.
 - (10) The relative sophistication of the attorney and the representative of the minor or person with a disability.
 - (11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.
 - (12) Whether the fee is fixed, hourly, or contingent.
 - (13) If the fee is contingent:
 - (A) The risk of loss borne by the attorney;
 - (B) The amount of costs advanced by the attorney; and
 - (C) The delay in payment of fees and reimbursement of costs paid by the attorney.
 - (14) Statutory requirements for representation agreements applicable to particular cases or claims.
- (Cal. Rules of Court, rule 7.955, subd. (b).) The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Petitioner's counsel contends the fees requested are reasonable based on the amount of time spent, counsel's ordinary fee, risk of loss, amount of time counsel has gone without payment, the generous settlement obtained for Victor, the difficulty of the legal questions involved, and that Victor likely would not have recovered without counsel's skill and expertise. (Petition, Attach. 13a, ¶ 7.)

Novelty and Difficulty

Petitioner's counsel indicates conducting extensive research and consulting with experts regarding potential police immunities and police practices and procedures. (Petition, Attach. 13a, ¶ 6, subd. (d).)

Amount Involved and Results Obtained

Petitioner's counsel seeks \$90,000.00 out of \$300,000.00, which is 30% of Victor's settlement. Petitioner's counsel also indicates Victor's share of the settlement will be deposited in an annuity, which will ultimately equal approximately 93% of the gross settlement. (Petition, Attach. 13a, ¶ 8.)

Nature and Length of Professional Relationship

Petitioner's counsel does not directly address this factor, but does indicate Petitioner retaining counsel on October 29, 2023. (Petition, Attach. 13a, ¶ 3.)

Experience, Reputation, and Ability of Counsel

Petitioner's counsel does not directly address this factor, but does claim that Victor likely would not have recovered anything from City without counsel's skill and expertise. (Petition, Attach. 13a, ¶ 7.)

Time and Labor Required

Petitioner's counsel indicates having performed a variety of work for this matter. (Petition, Attach. 13a, ¶ 6.)

Acceptance of Case Precluding Other Employment

Petitioner's counsel does not address this factor. (See generally, Petition, Attach. 13a.)

Contingency Fee

Petitioner's counsel seeks a 30% contingency fee. (Petition, Attach. 13a, ¶ 5.)

"California Rules of Court, rule 7.955 requires a trial court, in determining reasonable attorney fees, to balance an attorney's interest in fair compensation with the protection of the interests of a minor client. Thus, a trial court 'must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018) 27 Cal.App.5th 1167, 1176-1177, *italics in original*.)

The Court finds that Petitioner's counsel has adequately demonstrated the reasonableness of the fee award in light of the factors and circumstances in this case.

Medical Bills

Victor has incurred \$347,633.57 in medical expenses, \$149,990.92 of which was paid by private health insurance plan, and \$51,000.00 of which remains as a negotiated deduction to be reimbursed to the private health insurance plan. (Petition, ¶ 12, subds. (a)-(b).)

Costs

Petitioner's counsel seeks to recover \$0.00 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Victor is \$159,000.00. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court. (Petition, ¶ 18, subd. (b)(2).)

Prognosis

Victor has recovered completely from the effects of the injuries. (Petition, ¶ 8, subd. (a).)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Victor is not required due to Victor's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (MC-351)

Petitioner filed a proposed order for approving the petition (Form MC-351).

Based on the foregoing, the Court GRANTS Victor's petition for minor's compromise.

DISCUSSION – Isaac

Petitioner verified the petition on a fully completed mandatory Judicial Council Form MC-350, using the current January 1, 2021 revision. (Cal. Rules of Court, rule 7.950.)

Settlement

Isaac has agreed to settle this action against Defendants in exchange for \$280,000.00, \$145,000.00 of which will go to Isaac. If approved, \$84,000.00 will be paid in attorney fees, \$0.00 will be paid for reimbursement of litigation costs advanced by Isaac's attorneys, and \$51,000.00 will be paid for medical expenses, leaving a balance of \$145,000.00 for Isaac, to be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

The Court has reviewed the proposed settlement and finds the petition contains a full disclosure of all information that has any bearing upon the reasonableness of the settlement amount to Isaac.

Attorney Fees

Petitioner disclosed the retained attorney's information per Rule 7.951 of the California Rules of Court. (Petition, ¶ 17, subd. (b), Attach. 17a; Cal. Rules of Court, rule 7.951.) There is an agreement for services provided in connection with the underlying claim, a copy of which Petitioner submitted per Rule 7.951, subdivision (6), of the California Rules of Court. (Petition, Attach. 17a; Cal. Rules of Court, rule 7.951, subd. (6).)

Petitioner's counsel seeks to recover \$84,000.00 in attorney fees. (Petition, ¶ 13, subd. (a), Attach. 13a.) Petitioner's counsel provided a declaration addressing the reasonableness of the fee request per Rule 7.995, subdivision (c), of the California Rules of Court, accounting for the factors specified in Rule 7.955, subdivision (b). (Petition, Attach. 13a; Cal. Rules of Court, rule 7.955, subds. (b)-(c).) Rule 7.955, subdivision (b), provides as follows:

(b) Factors the court may consider in determining a reasonable attorney's fee. In determining a reasonable attorney's fee, the court may consider the following nonexclusive factors:

- (1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.
- (2) The amount of the fee in proportion to the value of the services performed.
- (3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.
- (4) The amount involved and the results obtained.
- (5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.
- (6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.
- (7) The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8) The time and labor required.

(9) The informed consent of the representative of the minor or person with a disability to the fee.

(10) The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11) The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12) Whether the fee is fixed, hourly, or contingent.

(13) If the fee is contingent:

(A) The risk of loss borne by the attorney;

(B) The amount of costs advanced by the attorney; and

(C) The delay in payment of fees and reimbursement of costs paid by the attorney.

(14) Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule 7.955, subd. (b).) The Court addresses these factors below.

Amount of Fee in Proportion to Value of Services Performed

Petitioner's counsel contends the fees requested are reasonable based on the amount of time spent, counsel's ordinary fee, risk of loss, amount of time counsel has gone without payment, the generous settlement obtained for Isaac, the difficulty of the legal questions involved, and that Isaac likely would not have recovered without counsel's skill and expertise. (Petition, Attach. 13a, ¶ 7.)

Novelty and Difficulty

Petitioner's counsel indicates conducting extensive research and consulting with experts regarding potential police immunities and police practices and procedures. (Petition, Attach. 13a, ¶ 6, subd. (d).)

Amount Involved and Results Obtained

Petitioner's counsel seeks \$84,000.00 out of \$280,000.00, which is 30% of Isaac's settlement. Petitioner's counsel also indicates Isaac's share of the settlement will be deposited in an annuity, which will ultimately equal approximately 107% of the gross settlement. (Petition, Attach. 13a, ¶ 8.)

Nature and Length of Professional Relationship

Petitioner's counsel does not directly address this factor, but does indicate Petitioner retaining counsel on October 29, 2023. (Petition, Attach. 13a, ¶ 3.)

Experience, Reputation, and Ability of Counsel

Petitioner's counsel does not directly address this factor, but does claim that Isaac likely would not have recovered anything from City without counsel's skill and expertise. (Petition, Attach. 13a, ¶ 7.)

Time and Labor Required

Petitioner's counsel indicates having performed a variety of work for this matter. (Petition, Attach. 13a, ¶ 6.)

Acceptance of Case Precluding Other Employment

Petitioner's counsel does not address this factor. (See generally, Petition, Attach. 13a.)

Contingency Fee

Petitioner's counsel seeks a 30% contingency fee. (Petition, Attach. 13a, ¶ 5.)

"California Rules of Court, rule 7.955 requires a trial court, in determining reasonable attorney fees, to balance an attorney's interest in fair compensation with the protection of the interests of a minor client. Thus, a trial court 'must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made.' [Citation.]" (Schulz v. Jeppesen Sanderson, Inc. (2018) 27 Cal.App.5th 1167, 1176-1177, italics in original.)

The Court finds that Petitioner's counsel has adequately demonstrated the reasonableness of the fee award in light of the factors and circumstances in this case.

Medical Bills

Isaac has incurred \$358,065.15 in medical expenses, \$98,705.63 of which was paid by private health insurance plan, and \$51,000.00 of which remains as a negotiated deduction to be reimbursed to the private health insurance plan. (Petition, ¶ 12, subds. (a)-(b).)

Costs

Petitioner's counsel seeks to recover \$0.00 in costs advanced. (Petition, ¶ 13, subd. (b).)

Amount to Be Paid to Claimant

The net amount to be paid to Isaac is \$145,000.00. (Petition, ¶ 15.)

Disposition of Balance of Proceeds

Petitioner requests that the net proceeds be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court. (Petition, ¶ 18, subd. (b)(2).)

Prognosis

Isaac has not recovered completely from the effects of the injuries. Isaac initially seemed to have made a full recovery approximately 17 months after the initial surgery, but was having gait abnormality, lower extremity weakness, and functional limitation in early 2026, which led to an order of additional physical therapy. (Petition, ¶ 8, subd. (b), Attach. 8b.)

Court Appearance

California Rule of Court 7.952, subdivision (a), requires attendance by the petitioner and claimant unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952, subd. (a).) The Court finds that the appearance of Isaac is not required due to Isaac's status as a minor. Petitioner must still appear for the hearing.

Order Approving Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (MC-351)

Petitioner filed a proposed order for approving the petition (Form MC-351).

Based on the foregoing, the Court GRANTS Isaac's petition for minor's compromise.

CONCLUSION

The Court GRANTS Claimant Victor Rodriguez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability. The Court will sign the proposed order.

The Court GRANTS Claimant Isaac Rodriguez's Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability. The Court will sign the proposed order.

Petitioner is ordered to provide notice of the Court's ruling and file proof of service of same within five days of the Court's order.

[1] The Court refers to Isaac and Victor by their first names only to avoid confusion and intends no disrespect.